

		<i>Defendant shall give notice of this ruling.</i>
9.	Sakasamo v. Adidev Technologies, Inc. 25-1334503	The demurrer of defendant Adidev Technologies, Inc. (Adidev) directed to the complaint of plaintiff Sisame B. Sakasamo (Plaintiff) is OVERRULED IN PART and SUSTAINED IN PART with 20 days leave to amend. As an initial matter, the Court declines to consider Plaintiff's untimely opposition. The opposition was filed four days late. The opposing papers do not set forth good cause for the tardiness, nor is there any explanation whatsoever for the late filing. The Court thus exercises its discretion to refuse to consider the late filed papers. (<i>Cal. Rules of Ct., rule 3.1300(d).</i>) Second Cause of Action for Breach of the Implied Covenant of Good Faith and Fair Dealing A breach of the implied covenant of good faith and fair dealing involves something beyond breach of the contractual duty itself. (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1394.) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated." (<i>Id.</i> at 1395.) Contrary to Adidev's argument, the second cause of action does not appear duplicative of the breach of contract claim. The breach of contract cause of action alleges defendants breached the agreement by: "(a) failing to provide any meaningful ongoing services after initial placement; (b) failing to provide technical tools, software, or resources despite Plaintiff's requests; (c) admitting in writing through their representative Naziya that they 'usually don't' provide ongoing services; (d) providing only two weeks of temporary housing during relocation and no other substantial services; and (e) collecting payments while providing no consideration or services in return." (Compl., ¶ 33.) The cause of action for breach of implied covenant, by contrast, is based on, among other things, allegations that defendants "consistently avoided written communications regarding service inquiries" and refused a request for a temporary payment deferral due to Plaintiff's financial hardship. (See Compl., ¶ 38.) These allegations go beyond a mere contract breach. The demurrer to the second cause of action is OVERRULED. Third Cause of Action for Constructive Fraud and Fourth Cause of Action for Misrepresentation to Induce Relocation (Lab. Code §970) Adidev is correct that these fraud-based claims are not pled with the requisite specificity. The causes of action refer to "Defendants"

		generally and thus fail to differentiate between representations allegedly made by Adidev and those made by TP-Link Systems, Inc. In addition, the causes of action fail to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written, as required for fraud claims against a corporation. (<i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157.) Accordingly, the demurrer to the third and fourth causes of action on this ground is SUSTAINED with 20 days leave to amend. <i>Counsel for Adidev shall give notice.</i>
10.	Dodd v. Ford Motor Company 25-1465355	Before the Court is a Demurrer by defendant Ford Motor Company ("Ford") to plaintiff's First Amended Complaint ("FAC"). The Demurrer is OVERULED as to the 1st through 3rd causes of action and SUSTAINED as to the 4th and 6th causes of action, with 14 days leave to amend. Song Beverly Act claims (1st through 4th causes of action): Ford argues the Song Beverly Act (SBA) claims (1st through 4th causes of action) are barred by <i>Code of Civil Procedure</i> §871.21. The Court rejects Defendant's argument the six-year statute of repose under <i>Code of Civil Procedure</i> section 871.21(b) bars Plaintiffs' claims under the SBA. The statute of limitations and repose embodied in <i>Section 871.21</i> became effective on January 1, 2025. Plaintiffs purchased their vehicle on December 13, 2018 (FAC ¶7) As of the effective date of <i>Section 871.21</i>, the six year period for filing a complaint had already run. "Generally, statutes operate prospectively only." (<i>McClung v. Employment Development Dept.</i> (2004) 34 Cal.4th 467, 475) "A statute may be applied retroactively only if it contains express language of retroactivity or if other sources provide a clear and unavoidable implication that the Legislature intended retroactive application." (<i>Ibid.</i>) "[T]he court must inquire whether, in a given case, that retrospective application may violate due process by in effect eliminating the plaintiff's right. If the time left to file suit is reasonable, no such constitutional violation occurs, and the statute is applied as enacted. If no time is left, or only an unreasonably short time remains, then the statute cannot be applied at all." (<i>Aronson v. Superior Ct.</i> (1987) 191 Cal.App.3d 294, 297; see also, <i>Rosefield Packing Co. v. Superior Ct. in & for City & Cnty. of San Francisco</i> (1935) 4 Cal. 2d 120, 122-23- "If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party.") Here, there is no express language of retroactivity in the statute, and Defendant failed to point to any other source showing the Legislature intended retroactive application.